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THE CONSTITUTION OF INDIA



Preamble **WE, THE PEOPLE OF INDIA**, having solemnly resolved to constitute India into a **SOVEREIGN DEMOCRATIC REPUBLIC** and to secure to all its citizens:

JUSTICE, social, economic and political;

LIBERTY of thought, expression, belief, faith and worship;

EQUALITY of status and of opportunity;
and to promote among them all

FRATERNITY assuring the dignity of the individual and the unity of the Nation;

IN OUR CONSTITUENT ASSEMBLY this twenty-sixth day of November, 1949, do **HEREBY ADOPT, ENACT AND GIVE TO OURSELVES THIS CONSTITUTION.**

WHAT IS CONSTITUTION ?

- THE CONSTITUTION OF INDIA IS THE SUPREME LAW OF INDIA, ESTABLISHING THE FRAMEWORK FOR ITS POLITICAL SYSTEM, GOVERNANCE, AND THE RIGHTS OF ITS CITIZENS. IT CAME INTO EFFECT ON JANUARY 26, 1950, MARKING THE REPUBLIC OF INDIA. THE CONSTITUTION IS A COMPREHENSIVE DOCUMENT THAT OUTLINES THE STRUCTURE OF THE GOVERNMENT, THE DISTRIBUTION OF POWERS AMONG VARIOUS BRANCHES OF GOVERNMENT, AND THE FUNDAMENTAL RIGHTS AND DUTIES OF INDIAN CITIZENS.

The original Constitution of India had 395 articles, 22 parts, and 8 schedules:

The Constitution came into effect on January 26, 1950, which is celebrated as Republic Day in India. Since then, the number of articles has increased to 448, and the number of schedules has increased to 12. This is due to 104 amendments that have been made to the Constitution. The Constitution's initial draft was prepared in February 1948 by Sir B. N. Rau, who was appointed as the assembly's constitutional adviser in 1946.

KEY FEATURES OF THE CONSTITUTION OF INDIA:

1. Length and Detail

The Indian Constitution is one of the **longest** in the world, originally having **395 articles** divided into **22 parts**, along with **8 schedules**. It has been amended many times, resulting in more than **100 amendments** since its adoption.

2. Federal Structure

India follows a **federal system** of government, where powers are divided between the **central government** (the Union) and **state governments**. However, it is **quasi-federal** because the central government has more powers than the states, especially in cases of emergency.

3. Parliamentary System

India adopts a **parliamentary democracy** modeled after the **British system**, where the **Prime Minister** is the head of government, and the **President** is the ceremonial head of state. The **Parliament of India** consists of two houses:

- **Lok Sabha (House of the People)**: The lower house, directly elected by the people of India.
- **Rajya Sabha (Council of States)**: The upper house, representing the states and union territories, with members elected by the state legislatures.

4. Fundamental Rights

The Constitution guarantees **Fundamental Rights** to all citizens, listed in **Part III**. These include:

- Right to equality (Article 14–18)
- Right to freedom (Article 19–22)
- Right against exploitation (Article 23–24)
- Right to freedom of religion (Article 25–28)
- Cultural and educational rights (Article 29–30)
- Right to constitutional remedies (Article 32)

These rights can be suspended during a national emergency, but they are crucial in protecting individual liberty and promoting justice.

5. Directive Principles of State Policy

The **Directive Principles of State Policy (DPSP)** (Part IV) are guidelines for the government to establish a welfare state. Although not justiciable (i.e., not enforceable in court), they reflect the aspirations of the nation, covering areas such as:

- Social and economic justice
- Equal pay for equal work
- Protection of children, youth, and women
- Promotion of education, public health, and a just society

6. Separation of Powers

The Constitution outlines a **separation of powers** between the three branches of government:

- **Legislature:** Makes laws (Parliament).
- **Executive:** Implements laws (President, Prime Minister, Council of Ministers, and Bureaucracy).
- **Judiciary:** Interprets laws (Supreme Court, High Courts, and subordinate courts).

7. Independent Judiciary

The **Judiciary** is independent, with the **Supreme Court of India** as the highest court of appeal. The judiciary has the power of **judicial review**, ensuring that laws and actions of the government are in conformity with the Constitution.

8. Secular State

India is a **secular** country, meaning there is no state religion. The Constitution guarantees freedom of religion to all its citizens and ensures that the state will not discriminate against any religion.

9. Sovereignty and Republic

The Constitution declares India as a **sovereign, socialist, secular, democratic** republic. This means India has full control over its own affairs, without being influenced by foreign powers, and guarantees democratic rights to its citizens.

10. Amendment Process

The Constitution can be amended to reflect changes in society, but the process is not easy. Amendments require approval from a majority of both houses of Parliament and, in some cases, ratification by at least half of the state legislatures. This ensures that changes are made only with broad consensus.

11. Preamble

The **Preamble** of the Constitution of India outlines the goals and objectives of the Constitution. It begins with the words "**We, the people of India,**" and sets the tone for the document, affirming the values of justice, liberty, equality, and fraternity. It also defines India as a **sovereign, socialist, secular, democratic republic**.

HISTORY OF CONSTITUTION



The Making of the Constitution of India: Evolution & Nationalist Movement

The Constitution of India is the result of a long and dynamic process of evolution, deeply rooted in the history of India's **nationalist movement**. The demand for self-rule and the struggle for independence paved the way for a robust framework of governance and law after India became an independent republic in 1947.

I. Historical Context and Evolution of the Indian Constitution

Colonial Period and Early Demands for Reform:

- **British East India Company Rule (1757–1857)**: India was ruled by the British East India Company until the **First War of Indian Independence (1857)**, after which the British Crown took over governance. Initially, the British imposed authoritarian control, and there were no efforts to involve Indians in governance.

Indian Reforms and Early Demands for Representation:

- **Indian National Congress (INC):** Founded in **1885**, INC gradually emerged as the political representative of Indian demands for greater participation in governance.

Role in Freedom Struggle: Over time, the INC transformed into the principal leader of the Indian independence movement, with key leaders like **Mahatma Gandhi**, **Jawaharlal Nehru**, and **Sardar Vallabhbhai Patel**.

- **The Indian Councils Act (1861):** This act allowed for some Indian members to be included in legislative councils but gave limited powers.

Indian Councils Act (1892): Expanded the legislative councils and introduced indirect elections. Early step toward representative governance but still limited in scope.

The Morley-Minto Reforms (1909): This act introduced separate electorates for Muslims and provided for a limited number of Indian representatives in the legislative councils. Marked a divide-and-rule strategy, as it institutionalized communal representation.

- **The Government of India Act (1919):** Introduced a **diarchical system** where certain powers were given to Indian ministers, but crucial decisions remained under British control.

- Transferred Subjects & Reserved Subjects

The Nationalist Movement and Growing Demand for Independence:

- **The Montagu-Chelmsford Reforms (1919):** The act was introduced by the British government as part of constitutional reforms in India to grant limited self-governance and respond to Indian demands for greater political participation. These reforms were implemented through the **Government of India Act, 1919**.

- **The Non-Cooperation Movement (1920–1922)** led by **Mahatma Gandhi** marked a significant step in the quest for complete self-rule. Gandhi's leadership pushed the INC to demand **Swaraj** (self-rule) for India. **Rowlatt Act (1919)**, **Jallianwala Bagh Massacre (1919)**, **Khilafat Movement** (1919-1924)

- **The Simon Commission (1927):** An all-British commission, it was boycotted by Indian leaders because it had no Indian members. This spurred more agitation for constitutional reforms. Indian National Congress, under **Motilal Nehru**, and other political parties decided to **boycott the commission**.

- **The Civil Disobedience Movement (1930–1934)** and the **Quit India Movement (1942)** were key moments in the freedom struggle. During this time, Indian leaders laid the groundwork for an independent India. (DANDI MARCH & CRIPPS MISSION WW2 Post war Dominion status)

The Round Table Conferences (1930–1932):

The **Round Table Conferences** (1930–1932) were a series of three conferences organized by the British government to discuss constitutional reforms in India and find a political solution for governance. They were held in **London** and involved representatives of various Indian communities, British officials, and princely states.

COMPOSITION OF CONSTITUENT ASSEMBLY

The **composition of a Constituent Assembly** typically refers to the group of representatives or delegates responsible for drafting or adopting a constitution or major legal framework for a nation. While the exact composition can vary depending on the country and historical context, the following elements are generally included:

1. Elected Representatives

- Delegates are often elected by the people through a democratic process.
- Elections ensure that various regions, communities, and constituencies are represented.

2. Appointed Members

- Some members may be appointed by political leaders, governments, or specific institutions to represent particular groups, such as minorities or marginalized communities.

3. Representation of Political Parties

- Political parties are often proportionally represented based on their performance in elections or their existing strength in the legislature.

4. Diverse Social Groups

- Representation may include people from various:
 - Ethnic or religious groups
 - Social classes
 - Gender identities
 - Professions (e.g., lawyers, scholars, activists).

5. Experts and Intellectuals

- Legal experts, economists, sociologists, and constitutional scholars may be included to provide technical advice and insights.

6. Regional Representation

- Delegates from different regions or states ensure that geographical diversity is accounted for in decision-making.

7. Provisions for Minority Representation

- Mechanisms may be put in place to ensure the inclusion of marginalized or underrepresented communities (e.g., scheduled castes, scheduled tribes, and women in the case of India).

Example: Composition of India's Constituent Assembly (1946-1949)

- Total Members:** Initially 389 members, later reduced to 299 after Partition.
- Elected Members:** Chosen by the provincial assemblies.
- Appointed Members:** Represented princely states and minority communities.
- Diversity:** Included lawyers, freedom fighters, industrialists, and representatives of various religious, linguistic, and cultural groups.

Major Committees of the Indian Constituent Assembly

The committees were broadly classified into **Steering Committees**, **Drafting Committees**, and **Advisory Committees**.

A. Drafting Committee

- **Chairperson:** Dr. B.R. Ambedkar
- **Purpose:** To prepare the draft of the Indian Constitution, based on the reports and recommendations of other committees.
- **Key Members:** Dr. B.R. Ambedkar, K.M. Munshi, Alladi Krishnaswami Ayyar, N. Gopalaswami Ayyangar, and others.
- **Date of Formation:** August 29, 1947.

B. Advisory Committee

- Chairperson:** Sardar Vallabhbhai Patel
- Purpose:** To deal with fundamental rights, minority rights, and issues related to Scheduled Castes, Scheduled Tribes, and other marginalized groups.
- Sub-committees:** **Minorities Sub-Committee:** Focused on minority protection.
- Fundamental Rights Sub-Committee:** Headed by J.B. Kripalani, focused on defining individual rights.
- Tribal and Excluded Areas Sub-Committee:** Focused on tribal welfare.

C. Union Powers Committee

- Chairperson:** Jawaharlal Nehru
- Purpose:** To recommend the division of powers between the Union and the States.

D. Union Constitution Committee

- Chairperson:** Jawaharlal Nehru
- Purpose:** To finalize the structure and framework of the Union government.

E. Provincial Constitution Committee

- Chairperson:** Sardar Vallabhbhai Patel
- Purpose:** To finalize the governance structure at the provincial (state) level.

F. Rules of Procedure Committee

- Chairperson:** Dr. Rajendra Prasad
- Purpose:** To frame the rules for conducting the business of the Constituent Assembly.

G. States Committee

- Chairperson:** Jawaharlal Nehru
- Purpose:** To address the integration of princely states into the Union of India.

H. Finance and Staff Committee

- Chairperson:** Dr. Rajendra Prasad
- Purpose:** To manage the financial and staffing requirements of the Constituent Assembly.

I. Credentials Committee

- Chairperson:** Alladi Krishnaswami Ayyar
- Purpose:** To verify the credentials of Assembly members.

J. Flag Committee

- Chairperson:** Dr. Rajendra Prasad
- Purpose:** To design the national flag.

Significance of Committees

- 1.**Division of Labor:** Committees allowed focused deliberations on specific issues.
- 2.**Expert Inputs:** Committees brought in experts and representatives from various fields.
- 3.**Efficiency:** Streamlined the process of drafting the constitution.

CONSTITUENT ASSEMBLY AND ROLE OF LEADERS :-

The **Constituent Assembly of India** was formed in **1946** to draft the Constitution of India, which came into effect on **January 26, 1950**. It consisted of prominent leaders and intellectuals who played critical roles in shaping the country's governance and policies. Among these leaders, **Dr. B.R. Ambedkar, Jawaharlal Nehru, and Sardar Vallabhbhai Patel** made significant contributions. Here's an overview:

Constituent Assembly of India

•Formation:

- Established under the Cabinet Mission Plan of 1946.
- Comprised **389 members**, later reduced to **299** after Partition.
- Members were elected indirectly by the provincial assemblies.

•Functions:

- To frame the Constitution of India.
- To lay down the framework for a sovereign, socialist, secular, and democratic republic.
- To discuss and resolve contentious issues like fundamental rights, federalism, and representation.

Role of Dr. B.R. Ambedkar

•Chairman of the Drafting Committee:

- Appointed on **August 29, 1947**, to draft the Indian Constitution.
- Played a pivotal role in structuring the legal and institutional framework.

•Contributions:

- **Social Justice:** Advocated for **fundamental rights** and **equal treatment** of all citizens, emphasizing the rights of the marginalized, including Scheduled Castes and Scheduled Tribes.
- **Economic Democracy:** Proposed provisions for abolishing untouchability and promoting affirmative action (reservations).
- **Individual Rights:** Championed freedoms of speech, religion, and equality before the law.
- **Federal Structure:** Advocated for a federal system with a strong central government.

•**Legacy:** Known as the "**Architect of the Indian Constitution**" for his extraordinary contributions.

Role of Jawaharlal Nehru

•Key Leadership Role:

- Played a significant role as the first Prime Minister of independent India and a senior member of the Constituent Assembly.
- Delivered the famous "**Objectives Resolution**" on **December 13, 1946**, which outlined the guiding principles of the Constitution.

•Contributions:

- **Vision of Democracy:** Advocated for a parliamentary democracy inspired by the British model.
- **Secularism:** Promoted a secular state with no discrimination based on religion.
- **Economic Policy:** Supported planning for industrialization and economic self-sufficiency.
- **Foreign Policy Framework:** Introduced ideas that later shaped India's non-alignment and global diplomacy.

•**Legacy:** His leadership ensured that the Constitution reflected the aspirations of a diverse and unified India.

Role of Sardar Vallabhbhai Patel

•Instrumental Role in Unification:

- Known as the "**Iron Man of India**" for his efforts to integrate 562 princely states into the Indian Union.
- Ensured that the Constituent Assembly had the authority to frame a unified Constitution for all states.

•Contributions:

- **Federal Integration:** Played a key role in defining the **federal structure**, ensuring both autonomy for states and a strong central government.
- **Administrative Framework:** Advocated for a stable administrative system, emphasizing discipline and efficiency.
- **Leadership:** Guided debates on critical provisions related to governance, minorities, and property rights.
- **Equality and Unity:** Focused on fostering national unity while safeguarding regional and cultural identities.

•Legacy: A symbol of national integration and administrative efficiency.